

S.V.E. Anti-Enclosure Interpretive Declaration No. 1

Public-Comment Supplement to the Signed S.V.E. Meta-License v6.0

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Status: Final candidate for signature; companion to the signed v6.0

Effective Date: 22 December 2026, 21:22 CET — simultaneously with v6.0, and only if v6.0 becomes operative under its §0.1

Pre-Effective Status: Signed, hash-locked public-comment text; not yet operative

The worker deserves his wages. — Luke 10:7; 1 Timothy 5:18
Live by your skills and talents — not by your secrets.

Preamble

This Declaration records and clarifies the Author's continuous anti-enclosure intent already embodied in the signed S.V.E. Meta-License v6.0. It does not replace v6.0, create a competing license, reopen its grant, or silently alter its hierarchy. It enters into effect, if at all, together with v6.0 and must always be read as its subordinate interpretive companion.

S.V.E. does not prohibit commercial success. Honest work, skill, service, maintenance, implementation, teaching, stewardship, and enterprise deserve reward. A compliant person or enterprise may earn as much as users and lawful agreements allow, including through recurring payments, subject to all operative S.V.E. conditions.

What S.V.E. rejects is secret enclosure: receiving an open intellectual root and returning its materially dependent fruits to Humanity as a closed monopoly.

§1 — Nature and Limited Function

1. This Declaration clarifies the meaning of Anti-Enclosure, No Secondary Secrecy, Wholeness, Research Integrity, Reciprocal Audit, and the One-Bit Rule under v6.0.
2. It is interpretive, not substitutive. It grants no right independently of v6.0 and cannot preserve a grant that v6.0 terminates, suspends, withholds, or declares unavailable.
3. Where this Declaration describes a future legal reform or possible future licensing mechanism, that language is a public-comment proposal only and is not a self-executing amendment of signed v6.0.
4. Nothing here expands copyright to bare ideas, facts, procedures, methods of operation, mathematical concepts, or other matter that applicable law leaves unprotected. The Author instead relies on the lawful combination of protectable expression, valid conditions of permission, contractual assent where effective, database rights, patent covenants, provenance, defensive publication, network copyleft, and public accountability.

§2 — Commercial Freedom Without Secret Rent

1. Commercial use remains permitted and encouraged during full compliance with v6.0.

2. Permitted models may include sale, subscription, usage-based billing, hosting, support, integration, consulting, certification, maintenance, teaching, customization, and recurring payment while a product or service remains in use.
3. Payment rewards labor, talent, reliability, service, and responsible stewardship. It does not purchase a right to conceal S.V.E.-dependent knowledge whose disclosure v6.0 requires.
4. In plain language:

Earn as much as you can — openly. Live from your work and talents, not from secrets.

§3 — All or Nothing: No Closed Remainder

1. The Wholeness Clause is substantive, not ceremonial. Publishing a token repository, isolated component, or original Corpus file does not cure enclosure of the materially integrated system built upon it.
2. Subject to the exact scope and exceptions of v6.0, required disclosure reaches the parts materially necessary to understand, reproduce, audit, modify, and independently operate the S.V.E.-dependent system, including where applicable:
 - source code and reproducible build and deployment instructions;
 - schemas, ontologies, prompts, policies, configurations, and orchestration logic;
 - model architecture, parameters, weights, adapters, and material training or fine-tuning provenance;
 - lawful dataset provenance and transformation records;
 - wrappers, plugins, sidecars, interfaces, remote components, and external services carrying material logic;
 - evaluation protocols, safety claims, limitations, failures, negative and null results, and material field notes;
 - hashes, version history, attribution, and provenance notices sufficient to verify what was used and changed.
3. Corporate separation, subcontracting, an API boundary, remote hosting, an NDA, a trade-secret label, clean-room relabeling, or placement of logic in a nominally independent entity does not by itself create a lawful closed remainder.
4. The test is functional: whether the undisclosed component is materially part of, or materially necessary to verify, the S.V.E.-dependent system — never merely whether it sits in the same repository or legal entity.
5. Where material dependency or copying is disputed, potentially relevant evidence may include: documented access; the chronology of access and development; substantial or unusually specific structural congruence; distinctive selection or arrangement; shared rare errors, terminology, test responses, registered fingerprints, or test vectors; internal records; and unexplained gaps or contradictions in provenance. No single factor is automatically conclusive, and mandatory evidentiary law controls.
6. A claim of clean-room or independent development is strengthened by contemporaneous records showing genuine team separation, access controls, independently identified sources, dated design decisions, reproducible development history, and the origin of distinctive features. Absence of such records is not automatic proof of infringement, but may be considered where applicable law permits.
7. Provenance markers must be lawful and safe. Nothing in S.V.E. authorizes fabricated defects, malicious code, unsafe behavior, or deceptive traps merely to manufacture evidence.

§4 — One Material Bit

1. Deliberately concealing even one material bit required for reproduction, verification, safety assessment, attribution, provenance, or license compliance is sufficient to constitute a One-Bit violation.
2. “Material” prevents the principle from being trivialized by harmless formatting differences or irrelevant omissions. It does not narrow, excuse, or replace any broader One-Bit consequence already imposed by v6.0 or its incorporated instruments.
3. Honest error, a negative result, failed research, or a good-faith inability to reproduce a result is not dishonesty when reported accurately and corrected transparently.
4. Fabrication, selective reporting, knowingly irreproducible claims, falsified provenance, concealment after discovery, and intentional destruction of material compliance evidence are not honest error.
5. Compliance elsewhere does not offset deliberate concealment. Restoration remains governed exclusively by the procedures and conditions of v6.0 and its incorporated instruments.
6. In assessing materiality, relevant questions include whether the omitted information could: (a) change an output, decision, metric, or claimed result; (b) prevent meaningful reproduction, build, operation, modification, or audit; (c) alter a safety, limitation, or risk assessment; (d) obscure provenance, attribution, training inclusion, or license scope; or (e) enable circumvention of a disclosure duty. These factors guide evidence; they do not replace v6.0’s text or applicable law.
7. A practical compliance record should, where applicable, contain a versioned source/software bill of materials, model and adapter inventory, data-provenance manifest, configuration and orchestration manifest, evaluation ledger, and research field notes. Each material category should be identified as disclosed, not applicable, or lawfully redacted with its basis recorded. This is evidentiary guidance, not a new independent grant or penalty.
8. Prompt self-reporting, preservation of evidence, correction, and republication are evidence of good faith. They do not create an automatic cure, safe harbor, or right to restoration where v6.0 withholds one.

§5 — Research Must Disclose Failure

1. Positive, negative, failed, partial, and null results are all part of the research record required by v6.0.
2. Publication of a favorable result while deliberately suppressing a material unfavorable result is enclosure by omission.
3. Reasonable, publicly declared delay for genuine safety review, peer review, source protection, or another v6.0-authorized purpose is not permanent enclosure.
4. An honest mistake may be corrected. A lie or deliberate concealment may not be relabeled as a mistake after discovery.

§6 — Privacy, Safety, and Authorized Deferred Disclosure

1. Radical openness must not be used to expose or endanger a person. Personal data, vulnerable persons, confidential sources, credentials, legally privileged advice, and genuinely dangerous technical details remain protected exactly as v6.0 provides.
2. This Declaration does not narrow or override v6.0’s Human Quarantine, Bunker Mode, Founder Mode, source-protection, privacy, safety, or lawfully compelled-secrecy provisions.
3. A v6.0-authorized freeze defers disclosure on the exact terms of v6.0; it does not convert deferred disclosure into permanent ownership by secrecy.
4. Where redaction is permitted and safe disclosure is possible, the existence, category, basis, scope, and expected duration of the redaction should be recorded, together with a reproducible substitute where reasonably possible.

5. Privacy protects a Human. Enclosure protects power from accountability. They must not be confused.

§7 — Reciprocal Accountability

1. A documented, reasonable suspicion of concealment, fabrication, enclosure, or evasion may trigger the audit machinery of v6.0.
2. Whoever initiates a suspicion-based audit must accept equivalent scrutiny on the same subject first or simultaneously, as v6.0 requires.
3. Audit must remain proportionate and may not be used for harassment, competitive extraction, exposure of unrelated private information, or defeat of an authorized v6.0 disclosure freeze.
4. This Declaration creates no penalty, presumption, burden reversal, or audit power beyond that authorized by v6.0 and applicable law.
5. Versioned manifests, reproducible build records, signed release attestations, timestamped hashes, and, where proportionate, Merkle commitments or independent escrow may preserve the evidentiary record. They support verification but are not conclusive by themselves and must not expose protected persons or defeat an authorized disclosure freeze.

§8 — Authorship, Inalienability, and No Novation

1. This Declaration does not amend, replace, waive, novate, assign, alienate, diminish, or otherwise impair the signed S.V.E. Meta-License v6.0.
2. Upon the v6.0 Effective Date, its provisions — including §0.2, §2.7, §4.7, §5, §13, and §14 — are incorporated into this Declaration by reference and remain controlling in full.
3. Nothing in this Declaration constitutes an assignment, abandonment, exhaustion, or waiver of the Author's original and unalienated authorship, moral rights, integrity interests, custodial authority, enforcement rights, or duties toward the S.V.E. Corpus.
4. Any purported transfer, waiver, or interpretation inconsistent with paragraph 3 is rejected to the maximum extent permitted by applicable law.
5. The v6.0 Natural-Person Rule remains non-severable and admits no entity-only or weaker fallback. No corporation, state, foundation, DAO, trust, or other legal construct acquires the Author's personal authorship or custodial office through this Declaration.
6. Nothing in this Declaration converts the S.V.E. Corpus into closed private property. The Author exercises the rights retained by law only to preserve the Corpus against enclosure and to keep its fruits open to Humanity under S.V.E. terms.

§9 — Hierarchy and Conflict Rule

1. The signed v6.0 is the primary and controlling instrument. This Declaration is subordinate interpretive guidance.
2. If two readings are possible, the reading that preserves both the text of v6.0 and the stronger lawful protection against enclosure governs.
3. If this Declaration directly conflicts with an unambiguous provision of v6.0, v6.0 governs and the conflicting language here has no operative effect.
4. No silence, shorthand, example, slogan, or plain-language passage in this Declaration may be used to weaken v6.0, create a new exception, or obtain a fallback that v6.0 denies.
5. The effective moment of this Declaration is the effective moment of v6.0: 22 December 2026, 21:22 CET, provided the signed v6.0 has not been withdrawn or validly replaced under its §0.1 before that moment.

6. Before that moment, this Declaration exists only as a signed, hash-locked public-comment document. Signature alone does not make it operative early.

§10 — Public-Comment Questions for a Future Version

Public comment is invited on five possible future changes that do not amend signed v6.0: (1) inserting GPL v3.0 between AGPL v3.0 and Apache 2.0 where the AGPL network condition cannot legally operate; (2) defining a material-dependency covenant for persons who affirmatively accept S.V.E. terms, without claiming ownership of bare ideas; (3) making provenance records an express norm for later independent-creation claims, without reversing mandatory burdens of proof; (4) incorporating the enumerated whole-system boundary in §3.2; and (5) adopting a machine-readable S.V.E. Disclosure Manifest covering software, models, data provenance, orchestration, evaluations, and redactions. Until validly adopted in a later instrument, the exact signed text of v6.0 controls.

§11 — Severability and Legal Realism

If any sentence here is invalid or unenforceable, it is construed where possible as non-binding guidance consistent with v6.0; otherwise it has no operative effect. No failure of this Declaration affects v6.0's validity, operation, non-severability, Ratchet, or independent legal footing. This personal interpretive instrument is not a substitute for jurisdiction-specific legal advice.

Signature

To be signed — AK1984 — Dr. Artiom A. Kovnatsky (The Revizor)

Author & Initial Custodian of the S.V.E. framework

A handwritten signature in black ink, appearing to read 'Artiom' followed by a stylized flourish and the date '2/16/11'.

Signature date and method: as encoded in the eIDAS/QES qualified electronic signature (Estonian eID, DigiDoc4), with OpenTimestamps confirmation.

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